

CHAPTER 34.

Milk (Special Designations) Act, 1949.

ARRANGEMENT OF SECTIONS.

Obligation to use a special designation on retailing of milk in specified areas, and provisions ancillary thereto.

Section

1. Use of special designation on retailing of milk (otherwise than as refreshments) in specified areas, and on certain associated sales.
2. Use of special designation as regards sales in specified areas of milk or milk products as refreshments.
3. Power of the Minister to consent to sales without use of special designation in certain circumstances.
4. Restriction on use of special designations "Accredited" and "Standard".
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6. Power of the Minister to provide facilities for treatment of milk.
7. Revocation of Regulation 55G of Defence (General) Regulations.

Enforcement of conditions of licences for specified areas, and limitation of power to revoke, suspend or refuse such licences.

8. Breach of certain conditions of licences for specified areas to be punishable.
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SCHEDULE.—Conditions to which s. 8 of this Act applies.

An Act to render compulsory the use of special designations on sales of milk by retail in specified areas, to enact certain provisions ancillary thereto as to the use of such designations, and to amend certain enactments in relation to such designations. [31st May 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

*Obligation to use a special designation on retailing of milk
in specified areas, and provisions ancillary thereto.*

Use of special
designation
on retailing
of milk
(otherwise
than as
refreshments)
in specified
areas, and
on certain
associated
sales.

1.—(1) Subject to the provisions of this Act, the use of a special designation shall be obligatory for the purpose of all sales of milk by retail for human consumption (other than catering sales) where the place of sale is in an area in which this subsection is in operation by virtue of the subsequent provisions of this Act in that behalf (in this Act referred to as "a specified area").

In this Act the expression "special designation" means—

- (a) in its application otherwise than to Scotland, a designation prescribed by Regulations made under subsection (1) of section twenty-one of the Food and Drugs Act, 1938;
- (b) in its application to Scotland, a designation prescribed by Order made under subsection (1) of section three of the Milk and Dairies (Amendment) Act, 1922, as enacted in section ten of the Milk Act, 1934;

and the said sections twenty-one and three respectively are in this Act referred to as "the principal enactment" for the purposes of the application of this Act otherwise than to Scotland, and for the purposes of its application to Scotland, respectively.

(2) The use of a special designation shall be obligatory also for the purpose of a sale of milk by retail for human consumption (other than a catering sale), notwithstanding that the place of sale is not in a specified area, if the milk is delivered from an establishment (whether in or outside a specified area) where there is carried on a business of selling milk which includes any sales for the purpose of which the use of a special designation is obligatory by virtue of the preceding subsection.

(3) The preceding subsections shall not apply to the selling of milk as therein mentioned by a producer of milk from cows to persons employed by him in or in connection with such production or employed by him otherwise in agriculture, if he does not engage in any other selling of milk as mentioned in those subsections.

(4) In this Act selling milk by retail means selling it—

- (a) to any person other than a milk dealer (that is to say, a person who carries on a business which consists in or comprises the selling of milk) or a manufacturer of milk products (that is to say, a person who carries on a business which consists in or comprises the making of things made from milk or of which milk is an ingredient) ; or
- (b) to such a dealer or manufacturer otherwise than for the purposes of his business as such.

(5) Any person who sells milk without the use of a special designation under a sale for the purpose of which the use of a special designation is obligatory by virtue of this section shall be guilty of an offence.

(6) It shall be the duty of every Food and Drugs authority within their area, and of every local authority in Scotland within their area, to carry into execution and enforce the provisions of this section.

2.—(1) The provisions of this section shall apply to catering sales, and to sales of milk to a person who carries on a business which consists in or comprises making catering sales (in this section referred to as “ a caterer ”).

Use of special designation as regards sales in specified areas of milk or milk products as refreshments.

(2) Subject to the provisions of this Act, a catering sale made in a specified area—

- (a) shall be lawful (unless it is for any reason unlawful apart from this subsection) if the caterer bought the milk under a sale for the purpose of which a special designation was used, or if he holds a licence authorising him to use a special designation in connection with the milk, whether the designation is used for the purpose of the catering sale or not ; but
- (b) otherwise shall be unlawful.

(3) Subject to the provisions of this Act, on a sale of milk to a caterer, being a sale for the purpose of which the use of a special designation would be obligatory by virtue of section one of this Act if it were a sale by retail, the use of such a designation shall be obligatory, except where—

- (a) the caterer buys the milk with a view to subjecting it to a process to which milk is required to be subjected as a condition of the use of a special designation in connection therewith, and he is the holder of a licence authorising him to use that designation, or
- (b) the caterer buys the milk for the purposes of a business of his as a milk dealer or a manufacturer of milk products other than his business as a caterer.

(4) Any person who makes a catering sale which is unlawful by virtue of subsection (2) of this section, or who sells milk without the use of a special designation under a sale for the purpose of which the use of a special designation is obligatory by virtue of subsection (3) of this section, shall be guilty of an offence :

Provided that a person shall not be guilty of an offence by virtue of subsection (3) of this section if at the time of the sale in question he had reasonable cause to believe that the conditions specified in paragraph (a) or (b) of that subsection were satisfied as to that sale or that the buyer was not a caterer.

(5) It shall be the duty of every Food and Drugs authority within their area, and of every local authority in Scotland within their area, to carry into execution and enforce the provisions of this section.

Power of the
Minister to
consent to
sales without
use of special
designation
in certain
circumstances.

3.—(1) Notwithstanding anything in subsection (1) or (2) of section one of this Act, or in subsection (3) of section two thereof, selling milk as therein mentioned without the use of a special designation shall be permissible if done with the consent of the Minister, and he may give consents for the purposes of this section, either generally as respects selling milk as mentioned in those subsections or restricted to a particular retailer or establishment or otherwise, and either unconditionally or subject to conditions, as may appear to him to be requisite in order to meet any circumstances in which use of a special designation which would be obligatory by virtue of those subsections apart from the consent appears to him to be for the time being not reasonably practicable.

(2) A catering sale made in a specified area shall not be unlawful by virtue of subsection (2) of section two of this Act if the milk was sold to the caterer with consent given by the Minister for the purposes of this section.

Restriction on
use of special
designations
“ Accredited ”
and
“ Standard.”

4.—(1) After the expiration of five years from the commencement of this Act the special designation “ Accredited ” shall be excluded from the designations which may be used in satisfaction of an obligation to use a special designation subsisting by virtue of this Act in its application otherwise than to Scotland, and the special designation “ Standard ” shall be excluded from the designations which may be used in satisfaction of an obligation to use a special designation subsisting by virtue of this Act in its application to Scotland.

(2) A person shall not use the special designation “ Accredited ” or “ Standard ” for a purpose for which the use of a special designation is obligatory by virtue of this Act unless the milk in question is all from a single herd, and any person who contravenes this subsection shall be guilty of an offence.

It shall be the duty of every Food and Drugs authority within their area, and of every local authority in Scotland within their area, to carry into execution and enforce the provisions of this subsection :

Provided that the said duty of a Food and Drugs authority shall not extend to execution and enforcement of the said provisions as regards use of the special designation " Accredited " by the producer of the milk in question.

5.—(1) The Minister may at any time order that subsection (1) of section one of this Act shall come into operation in any area in which it is not then in operation, or shall cease to be in operation in any area in which it is then in operation. Areas for operation of preceding provisions.

(2) Before making an order under this section the Minister shall consult with such representative organisations as appear to him substantially to represent the interests concerned with the purposes of the order.

(3) The powers conferred on the Minister by this section shall be exercisable by statutory instrument, and—

(a) a draft of any statutory instrument bringing subsection (1) of section one of this Act into operation in any area shall be laid before Parliament ;

(b) a statutory instrument ordering that subsection (1) of section one of this Act shall cease to be in operation in any area shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) For the purposes of this Act,—

(a) if a contract of sale of milk is made in one place and it is delivered under the contract in another place, the place of the sale shall, except in a case falling within paragraph (b) of this subsection, be taken to be the place where the milk is so delivered ;

(b) if a contract of sale of milk is made in one place and it is delivered under the contract to a carrier for transport to another place, the place of the sale shall be taken to be that other place.

6.—(1) The Minister may install, maintain and operate apparatus for the subjection of milk to any process to which it is required to be subjected as a condition of the use of a special designation in connection therewith, and may provide any other facilities for that purpose, in any case in which it appears to him, as respects any area which is a specified area, or an area as to which he proposes to make an order bringing subsection (1) of section one of this Act into operation, that Power of the Minister to provide facilities for treatment of milk.

facilities for the application of such treatment sufficient to provide for supplies of milk of that designation in that area in requisite quantities are not available and are not likely otherwise to become available.

(2) Where the Minister provides facilities under this section he may either buy the milk to be treated and re-sell it, otherwise than by retail or to a caterer for the purposes of his business as such, after treatment or apply the treatment to milk of others.

(3) The Minister may make arrangements with local authorities or other persons for the doing, on his behalf and at his expense, of things which he is authorised by this section to do, and it shall be within the powers of local authorities to carry out arrangements so made.

(4) Any expenses incurred by the Minister under this section shall be defrayed out of moneys provided by Parliament, and payments received by the Minister for milk sold by him thereunder, or for treating thereunder milk of others, shall be paid into the Exchequer.

Revocation of
Regulation 55G
of Defence
(General)
Regulations

7. Regulation fifty-five G of the Defence (General) Regulations, 1939 (which conferred power to specify areas in which selling milk by retail otherwise than under certain designations is to be unlawful) is hereby revoked.

Enforcement of conditions of licences for specified areas, and limitation of power to revoke, suspend or refuse such licences.

Breach of
certain
conditions of
licences for
specified areas
to be
punishable.

8.—(1) In the event of a breach of any condition to which this section applies of a licence to which this section applies, the holder of the licence shall, subject as provided in the next succeeding section, be guilty of an offence under this section.

(2) This section applies to a licence held by a retailer for a specified area, that is to say, a licence authorising the use of a special designation held by a person carrying on a business which includes any sales which are sales for the purpose of which the use of a special designation is obligatory by virtue of this Act and are of milk in relation to which that licence authorises the use of a special designation.

(3) The conditions to which this section applies are conditions as to any such matters as are specified in the Schedule to this Act.

(4) Milk (Special Designation) Regulations shall specify the authorities, whether local authorities or Food and Drugs authorities, by whom the provisions of this section are to be enforced as respects licences other than licences authorising the use of a

special designation in relation to raw milk by the producer thereof or authorising the use of a special designation by a local authority.

This subsection shall not apply to Scotland.

(5) It shall be the duty of every local authority in Scotland within their area to carry into execution and enforce the provisions of this section.

9.—(1) Such a breach of condition as is mentioned in the last preceding section, constituted by an act or omission for which the holder of the licence is liable to any punishment imposed by or under any enactment other than that section, shall not render the holder of the licence guilty of an offence under the last preceding section. Restrictions on liability under the preceding section.

(2) Such a breach of condition as is mentioned in the last preceding section shall not render the holder of the licence guilty of an offence under that section unless it was the later, or a later, of two or more such breaches, occurring within a period of twelve months, of conditions either of that licence or of that licence and a former licence by way of renewal whereof that licence was granted, and was committed either—

(a) after the licensing authority had given him notice in writing as to an earlier of those two or more breaches informing him of his being alleged to have committed it, and warning him of the liability to prosecution imposed by the last preceding section ; or

(b) after he had been convicted of an offence under that section by virtue of an earlier of those two or more breaches.

(3) In the case of any prosecution in respect of such a breach of condition as is mentioned in the last preceding section which would otherwise render the holder of the licence guilty of an offence under that section, it shall be a defence for him to prove the following matters (either as to that breach, or as to the earlier breach relied on for the purpose of subsection (2) of this section unless it is one by virtue of which he has been convicted of such an offence), that is to say—

(a) that neither he nor any servant or agent of his did, or knew of the doing of, any act that constituted the breach or can reasonably be regarded as having been the cause or amongst the causes of it, or omitted to do, or knew of an omission to do, any act the omission whereof constituted the breach or the doing whereof can reasonably be regarded as a precaution that would have prevented it ; and

- (b) if the breach was in connection with milk that had been sold to him, or had been delivered to him after being subjected to a process to which it was required to be subjected as a condition of the use of the special designation to which his licence related, that that designation was used for the purpose of the sale to him or in connection with the delivery to him, as the case may be, and was so used without any breach, discoverable by the exercise of reasonable diligence on the part of himself or any servant or agent of his, of any condition relating to receptacles, to closing, to fastening or to marking, of a licence to use that designation held by the person who sold the milk to him or subjected it to the process, as the case may be.

Licences for specified areas not to be revoked or refused except in case of conviction, and not to be suspended for over 3 months.

10.—(1) Any provision for the revocation of a licence authorising the use of a special designation on the ground of breach of a condition thereof made by Milk (Special Designation) Regulations or Milk (Special Designations) (Scotland) Orders shall be such as to secure that a licence held by a retailer for a specified area shall not be revoked, and a grant of a licence by way of renewal of a licence so held shall not be refused on the ground of breach of a condition of the licence so held, unless—

- (a) the breach in question is of a condition to which section eight of this Act applies,
- (b) the holder of the licence has been convicted of an offence under that section by virtue of the breach in question, or has been convicted, within twelve months before the time of the breach in question or after the time of it, of an offence under section one, two or four of this Act, of an offence under the principal enactment, or of an offence under Milk and Dairies Regulations for which a penalty is thereby imposed, or under the Milk and Dairies (Scotland) Acts, 1914 to 1948, or any Order or byelaw made under any of the last mentioned Acts, and
- (c) the decision of the licensing authority to revoke, or to refuse renewal, as the case may be, is made within twelve months from the date of the breach in question.

(2) Any provision for the suspension of a licence authorising the use of a special designation on the ground of breach of a condition thereof made by Milk (Special Designation) Regulations or Milk (Special Designations) (Scotland) Orders shall be such as to secure that—

- (a) a licence held by a retailer for a specified area shall not be suspended, by virtue of any one decision of the authority having power to suspend it, for a period of more than three months, but

(b) a period of suspension of such a licence awarded by any such decision may be extended by a subsequent such decision made in accordance with the provisions of the next succeeding section.

(3) For the purposes of any decision for the suspension of a licence held by a retailer for a specified area, the term of that licence and of any licence granted by way of renewal thereof shall be treated as if they had been a single term, and accordingly—

(a) a period of suspension of such a licence of three months or less may be awarded notwithstanding that that period is longer than the unexpired residue of the term of the licence; and

(b) where such a longer period of suspension of such a licence is awarded, a licence may be granted by way of renewal thereof but that licence shall be in suspense until the expiry of that period, and such a decision for extension of that period as is mentioned in paragraph (b) of the last preceding subsection may be made so as to extend the suspension of that licence.

Amendments of certain enactments in relation to special designations.

11.—(1) Provision shall be made by Milk (Special Designation) Regulations, and by Milk (Special Designations) (Scotland) Orders, for enabling the licensing authority or, on an appeal made to him by virtue of the subsequent provisions of this section in that behalf, the Minister or the Secretary of State, to revoke or suspend a licence authorising the use of a special designation, on the ground of any breach of condition thereof being a breach by virtue of which the holder has been convicted of an offence under section eight of this Act, or which, not being such a breach as aforesaid, is proved (in a case referred to a tribunal by virtue of the subsequent provisions of this section in that behalf) by the finding of the tribunal, or (in any other case) to the satisfaction of the licensing authority or of the Minister or the Secretary of State as the case may be.

Amendments
as to
revocation,
suspension or
refusal of
licences.

(2) Provision shall be made by such Regulations and Orders as aforesaid, as to any decision to revoke or suspend such a licence as aforesaid or to refuse a grant of such a licence,—

(a) where the licensing authority is a local authority, for conferring on the holder of the licence or the applicant, as the case may be (in this subsection referred to as "the person affected") a right to be heard by the appropriate committee of the authority before a decision is made, and a right of appeal to the Minister or the Secretary of State against a decision adverse to the person affected;

- (b) for requiring the Minister or the Secretary of State on any such appeal to him, and any Minister of the Crown when acting as licensing authority, before making his decision, to afford to the person affected an opportunity of making representations, and, where the issue is as to revocation or suspension of a licence held by a retailer for a specified area or refusal of a grant of a licence by way of renewal of such a licence and the person affected so requests, to refer the matter to a tribunal constituted in accordance with the Regulations or Order ;
 - (c) for requiring that the duty of such a tribunal on any such reference shall be to report findings on any questions of fact appearing to them to be relevant, and in particular, where the issue is as to revocation or suspension on the ground of a breach of condition not being one by virtue of which the holder of the licence has been convicted of an offence under section eight of this Act, to find and report whether the breach was in fact committed (which finding shall be conclusive for the purposes of this section), and for requiring the Minister or Secretary of State, or the Minister acting as licensing authority, as the case may be, to consider the report of the tribunal before making his decision ;
 - (d) for the procedure of such a tribunal, including provision for conferring on the person affected a right to be heard by the tribunal, and including provision for treating the finding of a majority of the members of such a tribunal as the finding of the tribunal in the event of a difference of opinion among the members ;
 - (e) for securing that any such hearing as aforesaid by a committee or tribunal shall be in public, that the person affected shall be entitled to be heard by himself or by counsel or a solicitor or other representative as he may elect, and that he or his representative shall be entitled to call witnesses and to cross-examine witnesses called by another ; and
 - (f) for securing that such notice of a decision or proposed decision shall be given to the person affected as may be requisite for enabling him effectively to exercise rights conferred on him by virtue of the preceding paragraphs.
- (3) The preceding provisions of this section shall be in substitution for paragraphs (d) and (e) of subsection (1) of the principal enactment (which confer power to provide by such Regulations and Orders as aforesaid for the suspension or revocation of a licence authorising the use of a special designation in the event of a breach of condition thereof, and for an appeal to the Minister or the Secretary of State against refusal, suspension or revocation of such a licence by a local authority), and those

paragraphs are accordingly hereby repealed, and paragraph (c) of subsection (2) of section ninety-two of the Food and Drugs Act, 1938 (which confers power to provide for an appeal against certain decisions) shall not apply to such a decision as is mentioned in the last preceding subsection :

Provided that such Regulations and Orders as aforesaid may provide for giving continuing effect to decisions, proceedings in connection with appeals, and other things made, taken or done before the coming into operation of the repeal of paragraphs (d) and (e) of subsection (1) of the principal enactment, or pending at the coming into operation thereof, as if they had been made, taken or done for the purposes of the provision to be made by such Regulations and Orders under subsections (1) and (2) of this section.

(4) There shall be paid out of moneys provided by Parliament to the chairman of any such tribunal as aforesaid such remuneration (by way of salary or fees) and such allowances as the authority appointing him may, with the approval of the Treasury, determine.

12.—(1) Where there has been a breach of a condition subject to which a licence authorising the use of a special designation was granted but the licence has not been revoked or suspended, the breach shall not be treated as rendering the use of the designation unauthorised, either for the purpose of paragraph (a) of subsection (2) of the principal enactment (which provides that no person shall, for the purpose of the sale or advertisement of any milk, use a special designation in any manner calculated to suggest that it refers to that milk unless he holds a licence authorising the use of that designation in connection with that milk) or for any other of the purposes of the Food and Drugs Act, 1938, of the Milk and Dairies (Scotland) Acts, 1914 to 1948, or of this Act.

Amendments
as to use
of special
designations.

(2) For the purpose of a sale or advertisement of milk as, or as part of, a meal or refreshments, a special designation may, notwithstanding anything in subsection (2) of the principal enactment, be used by a person who does not hold a licence authorising the use of that designation in connection with the milk, if the milk is milk bought by him and that designation was used for the purpose of the sale thereof to him.

(3) The following subsection shall be substituted for subsection (4) of section twenty-one of the Food and Drugs Act, 1938 (which specifies authorities whose duty it is to enforce the provisions of subsection (2) of that section), that is to say—

“(4) It shall be the duty of every Food and Drugs authority within their area to carry into execution and enforce the provisions of subsection (2) of this section :

Provided that this subsection shall not apply to the execution or enforcement of those provisions, after the

coming into operation of the Food and Drugs (Milk and Dairies) Act, 1944, as regards any use of a special designation, or any reference to milk by such a description as is mentioned in the said subsection (2), by the producer of the milk in question where that milk is raw milk."

Where by virtue of the preceding provisions of this subsection the duty therein mentioned is transferred from one body to another, anything commenced before the coming into operation of those provisions by or under the authority of the former may, so far as it relates to that duty, be carried on or completed by or under the authority of the latter, and, in any legal proceedings having reference to that duty which are pending at the coming into operation of those provisions and to which the former is a party, the latter shall be substituted for the former and the proceedings shall not abate by reason of the substitution.

Amendment
as to procuring
of samples for
enforcement
of conditions
of licences.

13. The power conferred by section ninety-two of the Food and Drugs Act, 1938, to make, by Milk (Special Designation) Regulations, modifications in the application of provisions of that Act as respects matters dealt with by those Regulations shall include power, in dealing with the procuring of samples for the purpose of the enforcement of conditions of licences authorising the use of special designations, to exclude provisions of the Third Schedule to that Act which may appear not to be appropriate for that purpose.

General.

Interpreta-
tion.

14.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say,—

"business" includes the business of a hospital, school or other institution whose selling of milk is incidental only to the rendering of the health, educational or other services rendered by the institution;

"catering sale" means a sale of milk, or of things made from milk or of which milk is an ingredient, as, or as part of, a meal or refreshments;

"licence held by a retailer for a specified area" has the meaning assigned to it by subsection (2) of section eight of this Act;

"licensing authority" means, in relation to grant of a licence authorising the use of a special designation, the authority having power to grant it by virtue of Milk (Special Designation) Regulations or Milk (Special Designations) (Scotland) Orders, and, in relation to such a licence which has been granted, the authority who would for the time being have power by virtue of such Regulations or Orders as aforesaid to grant a licence by way of renewal thereof if it had expired;

"local authority", in the application of this Act otherwise than to Scotland, includes any local authority within the meaning of the Local Government Act, 1933, or the London Government Act, 1939 ;

"milk" has the meaning assigned to it by subsection (3) of this section ;

"Milk and Dairies Regulations" does not include Milk (Special Designation) Regulations ;

"Milk (Special Designation) Regulations" and "Milk (Special Designations) (Scotland) Orders" mean respectively Regulations and Orders made under subsection (1) of the principal enactment ;

"the Minister" means the Minister of Food ;

"the principal enactment" has the meaning assigned to it by subsection (1) of section one of this Act ;

"raw milk" means milk which has not been treated by heat ;

"selling" means selling in the course of a business, and includes, in relation to milk, supplying it under arrangements for free supply, and, in relation to milk and things made from milk or of which milk is an ingredient, supplying it or them, in the course of any business, otherwise than under such arrangements ; and references to sales and contracts of sale shall be construed accordingly ;

"specified area" has the meaning assigned to it by subsection (1) of section one of this Act ;

"supplying under arrangements for free supply" means, in relation to any milk, supplying it, free from any payment made or to be made by the person to whom it is supplied, under arrangements made in exercise of powers in that behalf conferred by any Regulation in the Defence (General) Regulations, 1939, by section forty-nine, or subsection (2) of section seventy-eight, of the Education Act, 1944, or by section forty-seven or forty-nine of the Education (Scotland) Act, 1946 ; and references to a person's buying milk include references to his having it supplied to him under such arrangements.

(2) In paragraph (b) of subsection (1) of the principal enactment (which relates to the granting of licences to producers and purveyors of milk authorising the use of special designations) the reference to purveyors of milk shall include a reference to persons who supply milk under arrangements for free supply, or who

supply milk, in the course of any business, otherwise than under such arrangements ; and in subsection (2) of the principal enactment the reference to sale shall be construed in accordance with the definition of the expression "selling" in the preceding subsection.

(3) In this Act the expression "milk" means cows' milk, but does not include cream, or separated, skimmed, dried, condensed or evaporated milk, or butter milk :

Provided that for the purposes of section twelve of this Act and of the last preceding subsection (which relate to the interpretation and amendment of the principal enactment) the said expression has the same meaning as in the principal enactment.

Provisions as
to Scotland.

15.—(1) A person guilty of an offence under this Act in its application to Scotland shall be liable to the like penalties as a person guilty of an offence under the Milk and Dairies (Amendment) Act, 1922.

(2) Nothing in this Act imposing a duty on a local authority in Scotland to execute and enforce any provision thereof shall be construed as authorising them to institute proceedings for any offence under this Act.

Short title,
commence-
ment,
construction,
citation
and extent.

16.—(1) This Act may be cited as the Milk (Special Designations) Act, 1949.

(2) This Act shall come into operation on the first day of October, nineteen hundred and forty-nine.

(3) This Act, save as it applies to Scotland, shall be construed as one with the Food and Drugs Act, 1938, as if included in Part II thereof (except that references in this Act to the Minister and to other expressions defined in section fourteen of this Act shall be construed in accordance with that section) ; and this Act, save as it applies to Scotland, and the Food and Drugs Acts, 1938 and 1944, may be cited together as the Food and Drugs Acts, 1938 to 1949.

(4) This Act, as it applies to Scotland, shall be construed as one with the Milk and Dairies (Scotland) Act, 1914, the Milk and Dairies (Amendment) Act, 1922, as that Act applies to Scotland, and the Milk Acts, 1934 to 1938, as those Acts apply to Scotland (except that references in this Act to expressions defined in section fourteen of this Act shall be construed in accordance with that section) ; and this Act and those Acts, as they apply to Scotland, may be cited together as the Milk and Dairies (Scotland) Acts, 1914 to 1949.

(5) This Act shall not extend to Northern Ireland.

SCHEDULE.

Section 8.

CONDITIONS TO WHICH S. 8 OF THIS ACT APPLIES.

Conditions to which section eight of this Act applies are conditions relating to any of the following matters, that is to say :—

The examination or testing of animals, the inoculation of animals, the keeping of any animal or herd away from other animals, or other measures for detecting the existence of disease in animals or preventing the contracting or spread of it.

The marking, or keeping records, of any animals, or other measures for identification thereof.

The subjection of milk to any process of heat-treatment, or to any cooling or other process, requirements in connection with the subjection of milk thereto or as to the temperature or other conditions under which it is to be kept thereafter, or the recording or retention of evidence of the observance of such requirements.

Satisfaction of a test of milk, being a test related to the subjection of milk to such a process as aforesaid or to the observance of any such requirements as aforesaid.

Measures for securing that milk produced, or subjected to a process, as required by any conditions is kept away from, and free from admixture with, other milk not so produced or subjected or other things, or is not subjected to some specified process.

The manner in which milk produced, or subjected to any process, in accordance with any conditions is to be dealt with or kept as respects the receptacles in which it is to be put or to remain, the closing or fastening of receptacles, or the marking of receptacles or of things by which they are closed or fastened.

The manner of describing milk produced, or subjected to any process, in accordance with any conditions.

The making or keeping of records of milk produced, bought, subjected to any process, or sold.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Milk and Dairies (Scotland) Act, 1914	4 & 5 Geo. 5. c. 46.
Milk and Dairies (Amendment) Act, 1922... ..	12 & 13 Geo. 5. c. 54.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Milk Act, 1934	24 & 25 Geo. 5. c. 51.
Food and Drugs Act, 1938	1 & 2 Geo. 6. c. 56.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Food and Drugs (Milk and Dairies) Act, 1944 ...	7 & 8 Geo. 6. c. 29.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
